

Can an Undischarged Bankrupt Affirm an Affidavit under Malaysian Law?

What is an affidavit?



An affidavit is a **sworn written statement** used as evidence in court. It lets you present your facts to a judge without speaking in person, provided you sign it truthfully before an authorized official (Commissioner for Oath). The person who writes and signs the affidavit is called the **deponent**. In Malaysia, affidavits are governed by **Order 41 of the Rules of Court 2012 (ROC)**. Generally, any persons competent to testify in court are competent to make affidavits.

Undischarged bankrupt affirming an Affidavit?

Under **Section 3 of the Insolvency Act 1967 (IA 1967)**, an undischarged bankrupt is a person who has committed an act of bankruptcy. However, being an undischarged bankrupt does not stop a person from

making (affirming) an affidavit as there are no laws prohibiting them from doing so.

The **Federal Court** in ***Tong Soon Tiong & Ors v FA Securities Sdn Bhd [2016] 6 MLJ(evi) 165***, held that bankruptcy does not preclude a person from giving evidence or filing affidavits, particularly as the insolvency regime itself requires bankrupts to make full and truthful disclosures of their affairs.

The High Court in ***The Topps Co Inc v Mally Jaya Sdn Bhd [1998] 5 MLJ 744***, held that where bankruptcy alone does **not** make a person legally incompetent, nor does it automatically invalidate an affidavit used in court. However, the law requires **full and honest disclosure** to the court. This duty of good faith means that the deponent **must disclose** their status as an undischarged bankrupt. Failure to do so amounts to **material non-disclosure**, and any order obtained may be set aside.



However, in certain situations the status may not be material to the proceedings or applications. Pursuant to ***Armor Multi Systems Sdn Bhd & Anor v Yew Sair Lai & Ors [2008] 7 CLJ 442***, where the status of a bankrupt is immaterial to the application, it has been held that an undischarged bankrupt may make an affidavit which does not disclose his undischarged status.

Conclusion



In summary, Malaysian law recognizes that an undischarged bankrupt is not legally disqualified from affirming an affidavit, and such affidavits are generally still admissible in court. However, the duty of full and frank disclosure is paramount if the status is material to such proceedings or applications. The failure to disclose the deponent's status as an undischarged bankrupt constitutes material non-disclosure and may be fatal to the application.

References

1. *Order 41 of the Rules of Court 2012*
2. *Section 3 of the Insolvency Act 1967*
3. *Tong Soon Tiong & Ors v FA Securities Sdn Bhd [2016] 6 MLJ(evi) 165*
4. *The Topps Co Inc v Mally Jaya Sdn Bhd [1998] 5 MLJ 744*
5. *Armor Multi Systems Sdn Bhd & Anor v Yew Sair Lai & Ors [2008] 7 CLJ 442*

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Date: 13 January 2026